

ETHICS OF PROFESSIONS AND PROFESSIONALISM

(Extracts from 'Law & Society' by Professor Fabian Ajogwu, SAN, FCI Arb)

Ethics relates to moral action, conduct, motive or character.³⁴ Legal ethics is defined as the standard of minimally acceptable conduct within the legal profession, involving the duties that its members owe to one another, their clients, and the courts.³⁵ A realisation at all times that what one is doing conforms to what ought to be done.

Ethics involves reflective evaluation or prescription concerning conduct. It is a standard or behavior or conduct which must comply with what is laid down as right or proper.³⁶ Ethics as a field of study is a branch of philosophy that is concerned with what is morally good or bad, right or wrong. Traditionally, ethics has undertaken to analyse, evaluate and develop normative moral criteria for dealing with moral problems.³⁷ 'Ethics' or "Morality" is derived from the Greek word "Ethos" and "Morality" from the Latin word "Mores", which means habits or customs. It must however be emphasised that ethics or morality consists not merely in what is done by way of observing customs, rules or law but in what is done as a matter of principles and conviction about the rightness of doing what is right.

A professional is a person who belongs to a body of professional learning or whose occupation requires a high level of training and proficiency. A profession is a vocation requiring advanced education and training.³⁸ Professionalism in the legal profession relates to the education and training required for members of the legal profession. It encompasses the need for them to receive and manifest this high level of training, learning and professional approach to the practice of this profession. In relation to the lawyer, this professional approach requires excellence and not mediocrity, a constant desire to attain perfection on a regular basis. A sound knowledge of the law and the application of the Rules of Professional Conduct in the Legal Profession are

(1966) NSCC 209.

This right to counsel is provided for in section 36 (6) (c) of the 1999 Constitution as amended.

P. Ramanatha Aiyar, *Advanced Law Lexicon*, 3rd ed. 2009, p. 1657.

lack's Law Dictionary, Seventh Edition, 904.

Deji Balogun, *Breach of Professional Ethics – Recurrent Disciplinary Issues Before the Disciplinary Committee of the Bar*, being a paper presented on November 5, 2009 at the section on Legal Practice of the Nigerian Bar Association. Encyclopedia Britannica. See also Deji Balogun, *Breach of Professional Ethics – Recurrent Disciplinary Issues Before the Disciplinary Committee of the Bar*, being a paper presented on November 5, 2009 at the section on Legal Practice of the Nigerian Bar Association.

Black's Law Dictionary p. 1226.

necessary.

There is a high rate of unethical and unprofessional conduct by professionals and lawyers in particular. Consequently, the 52nd Annual General Conference (AGC) of the Nigerian Bar Association lamented that there are too many cases of clear violation of ethics in the legal profession which include ambulance chasing and legal practitioners arguing their cases in the media. The AGC therefore emphasised the necessity for bad eggs in the profession to be disciplined and shown the exit door.³⁹ In May 14, 2013, the names of four lawyers were struck off the Roll and two suspended for five years by the Legal Practitioners Disciplinary Committee for infamous conduct.⁴⁰

The point communiqué issued by the Section of Legal Practice of the Nigerian Bar Association on November 15, 2012 after its meeting at Ibadan contains a clarification of what ethics and professionalism in relation to the legal profession is. It read among other things that -

“A Lawyer lives for the direction of his people and the advancement of the cause of his country,” therefore as lawyers, we owe a duty to the society to observe the intrinsic rules of basic fairness, equality and justice. We are to carry out our profession in the spirit of these three ideals: organisation, learning, and a spirit of public service.

Lawyers should at all times uphold the core traditional values that underline the very essence of our calling as professionals. That the NBA should ensure promotion of professionalism as the way forward in the attainment of international best practices. That the NBA through its branches should take up public interest litigation to curb the excesses of police officers and other enforcement agencies.

Lawyers should make effective use of the Freedom of Information Act in demanding accountability from government agencies and parastatals. That the NBA and its members should ensure the observance of ethical codes amongst its members and be at the forefront of the fight against impunity in Nigeria and champion the reform of the polity.

Public office holders should demonstrate a higher sense of responsibility, accountability and respect for the rule of law.

<http://nba.org.ng/web/communiqu%C3%A9-issued-by-the-nigerian-bar-association-at-the-close-of-her-52nd-annual-general-conference--general-meeting-held-at-the-international-conference-centre-abuja-august-26-to-31-2012.html>. Accessed November 26, 2012

Source: Thisday Newspaper of Tuesday, May 14, 2013.

The NBA is urged to keep faith with its National Executive Committee (NEC) decision to set up a viable Anti-Corruption Committee/Commission.

Reading is a veritable source of intellectual development and accordingly, lawyers should be encouraged to maintain the reading culture and embrace other forms of continuing legal education to improve their professional skills.

Information Technology has become an indispensable tool in modern times and lawyers should be encouraged to enhance their practice by adopting innovative technologies and techniques to facilitate effective legal service delivery.

In view of the global trends in legal service delivery, there is the need to review the Rules of Professional Conduct as it relates to the restriction against advertising.

Medical practitioners must be held accountable in medical malpractice cases; Lawyers should play an active role in the promotion of the rights of patients but they are encouraged to understand the procedure for litigating medical malpractice cases before proceeding to court in such cases.

Machinery should be put in place by the criminal justice administration system to ensure that witnesses, especially in criminal matters, enjoy a measure of protection. That it was noted that criminal prosecution is hampered by poor investigation. There is therefore the need to enhance the investigative capacity of the investigating authorities to ensure a higher level of professionalism.

The Attorneys General and Directors of Public Prosecution across the country should actively co-ordinate their Ministries to ensure a synergy between investigation and prosecution of criminal cases. That there is the need to develop and implement a comprehensive code for prosecutors across the country to ensure transparency, consistency and accountability.

The concept of plea bargaining is an effective case-management tool and despite the reservations expressed in certain quarters, should be utilized to ensure effective resolution of criminal matters in appropriate cases.”

Items of the above communiqué that touch on ethics are 1, 2, 3 and 8. Items 1, 2 and 7 contain elements of professionalism. The advice that lawyers should employ information and communication technology (ICT) in their practice is important as effective delivery of legal service in modern times is rarely possible without a deployment of ICT by lawyers in their practice. This is not contained in the Rules of Professional Conduct in the Legal Profession, 2007. An amendment to the Rules should require lawyers to incorporate ICT into their practice⁴¹.

Impersonation of a Legal Practitioner

It follows from the definition of legal practitioner that a person who is not qualified, called to the Bar or enrolled shall not practise as a legal practitioner. If he does so, he will be deemed to be guilty of an offence.⁴²

Section 22 of the Legal Practitioners Act makes any person other than a Legal Practitioner who:

Practices, or holds himself out to practice, as a legal practitioner; or
Takes or uses the title of legal practitioner; or
Wilfully takes or uses any name, title, addition or description falsely implying, or otherwise pretends, that he is a legal practitioner or is qualified or recognised by law to act as legal practitioner; or
Prepares for or in expectation of reward, any instrument relating to immovable property relating to or with a view to the grant of probate or letters of administration, or relating to or with a view to proceedings in any court of record in Nigeria;

shall be guilty of an offence and liable, in the case of any offence under paragraph (a) of this subsection or a second or subsequent offence under paragraph (d) of this subsection, to a fine of an amount not exceeding NI00.

In this provision,⁴³ “instrument”, in relation to immovable property, means any document which confers, transfers, limits, charges or extinguishes any interest in property or which purports so to do and “immovable property” includes unextracted minerals.

From this provision, impersonating a legal practitioner occurs when a person who is not a legal practitioner actually practises as such or uses the title legal practitioner,

M.M.S. Ltd. v Oteju (2005) 14 NWLR (Pt. 945) 517, Where the Supreme Court held that “The Rules of Professional Conduct in the Legal Profession, set out minimum standard of conducts and behavior of advocates ...and counsel have a duty to maintain such minimum standard.

Section 22 (1) of the Legal Practitioners Act.

Section 22 (1) of the Legal Practitioners Act.

barrister or solicitor. These breaches, as well as the provision that makes a non-legal practitioner who prepares instruments for or in expectation of reward, are easy to detect. The difficulty is with the provision, which makes a person who wilfully takes or uses any name, title, addition or description falsely implying, or otherwise pretends, that he is a legal practitioner or is qualified or recognised by law to act as legal practitioner, guilty of the offence. First, the person must have ‘wilfully’⁴⁴ done the stated act. This mental element for the commission of the crime would make it difficult to prove. Other than the titles legal practitioner, barrister or solicitor, it is difficult to see any other title or name that would imply that a person is a legal practitioner. A person whose parents, at birth, named lawyer, barrister or solicitor⁴⁵ would not be guilty of this offence, so long as he does not, without first qualifying as a legal practitioner, practise as such. Use of “esquire” after a non-lawyer’s name would also not ground proceedings against the person. This is because “esquire” is not reserved to legal practitioners.

It is important to note that nothing shall prevent a person from being dealt with for contempt of court, but no proceedings for an offence under section 22 shall be brought or continued against a person in respect of any act if he has been dealt with for contempt of court in respect of that act.⁴⁶ This provision prohibits double jeopardy.

Intentionally.

Indeed people who bear Lawyer or Justice abound among Niger Deltans in Nigeria’s South-South. Section 22 (3) *ibid*.

ATTRIBUTES OF A GOOD ADVOCATE⁵⁹

A Good Voice

A good sounding and clear voice is an important quality that the lawyer must possess. Lord Denning therefore said:

Rule 21(3) of the Rules of Professional Conduct.
Section 16(1) of the Legal Practitioners Act.
G.O.K. Ajayi v. Lagos City Council (1969) 1 ALL NLR 367
Soluade v. Fari 9 NLR 87.
Bakare v Okenla (1968) 5 NSCC 245.
Section 16(4) Legal Practitioners Act
Abdallah v. Thomas 2 WACA 114.
Sagoe v R 1963 1 ALL NLR 290 (293).
Taken from Munkman, *The Technique of Advocacy*.

Your voice must be pleasing not harsh or discordant. Pitch it so that all can hear. Pronounce your consonants. Do not slur your words. Speak not too fast nor yet too slow. All these things are commonplace but they are so often forgotten that I warn you against the mistakes I see made daily. No hands in pockets. It shows slovenliness. No whispering with neighbours. It shows lack of respect. No 'ers' or 'ums'. It shows that you are slow-thinking not knowing what to say next. Avoid mannerisms like the plaque. It distracts attention. Don't be dull. Don't repeat yourself too often. Don't be long-winded. All these lose you your hearers: and once you have lost them, you are done for. You can never get them back. Not so as to get them to listen attentively.⁶⁰

In addition to these, it is important to lace your speech with courtesy and due respect to the court. Any trace of rudeness or arrogance may, strictly speaking, cost you audience.

Command of words

A sound command of the English language is an important tool for the advocate. To succeed in the profession of law, you must seek to cultivate the command of language. Words are the lawyer's tools of trade... The reason why words are so important is because words are the vehicle of thought... there is no other means. Obscurity in thought inexorably leads to obscurity in language.⁶¹

Without this, it is impossible to frame questions readily in cross-examination, to frame non-leading questions in examination-in-chief, or to deliver speeches at short notice. An accurate and varied style needs much cultivation. The essentials of style in court are simplicity and clearness; if it is possible in addition, to be interesting and occasionally picturesque.

Confidence

No quality carries an advocate further than this: confidence can be cultivated. The confident handling of a case, once it has started is in no way inconsistent with a certain nervous tension before starting a race, but every effort should be made to

The Discipline of Law, page 8.
Denning, *ibid*, page 5.

eliminate this feeling. The ideal state, as for an athlete, is one of alert position.

Persistence

Persistence is a marked characteristic of the average successful junior counsel. It enables him to fight cases to the end in spite of unexpected difficulties, and is a most valuable asset in cross-examining. This attribute is exhibited in impressive degree by successful senior members of the bar. This then is evidence of the fact that it is an attribute that ought to be imbibed.

Practical judgment

This needs a little explanation. Knowledge of law, and of technique, is knowledge of general principles. The nearer one gets to individual facts, the less one is guided by general principles and the more the feel of things: this ability to judge individual situations may to some extent be innate, but is generally acquired by experience and it is correct to call it practical judgment. It is exemplified by the ability to sense a weak point when cross-examining or in the selection of the central issue on which a case is fought, or in judging probabilities, and indeed in many other respects.

Knowledge of mankind and of world affairs

Advocacy, like teaching and medicine, is an art, which co-operates with human nature, because it works on the minds of the judge; the jury and the witnesses. Besides, the facts in most cases are concerned in part, at any rate, with the actions of the parties and of other persons, and motives and probabilities play a leading part in legal argument on the facts unless these are proved conclusively by direct evidence. For these reasons, the knowledge of ordinary human behaviour and of the springs of human action is fundamental. Likewise, the law touches on most branches of human affairs in one form or another and a superficial acquaintance with almost any topic may facilitate the presentation of a case. Of the many things with which the law is concerned, some arise with great frequency, and it is useful to know something about the habits and living conditions of all social grades (valuable in divorce and criminal practice) about elementary anatomy, about commercial accounts, and about the working of machines.

Other qualities are honesty, industry or hardwork, eloquence, wit, and spirit of fellowship. General knowledge of this kind cannot, of course, be cultivated at once, but is gradually added to, little by little in the course of practice. It is an aspect of the advocate's quality of hard work to prepare his witness thoroughly. A procedure for doing so is outlined below:

- He should acquaint himself with his witness. They should not meet

for the first time in Court. Prior meetings will enable the advocate understand his witness.

The meetings should enable the lawyer prepare his witness in terms of what to expect, court environment, dressing, how to conduct himself in court and evidence.

At the end of the meetings, counsel should be able to determine the relevance of the witness' evidence and reach a decision whether or not he needs to call him.

CHAPTER NINE: RELATIONSHIP OF COUNSEL WITH OTHER LAWYERS

As a professional, the legal practitioner owes certain duties to his professional colleagues. These duties are outlined in the *Rules of Professional Conduct in the Legal Profession, 2007*. A breach of any of the duties can suffice for the disciplinary bodies of the Bar to move against the legal practitioner that is in breach.

FELLOWSHIP AND PRECEDENCE

It is a basic rule in the relationship between advocates that subject to the rule on seniority at the Bar, lawyers are all equal and should be treated equally.⁶² They should therefore treat one another with respect and courtesy. The Rules of Professional Conduct in the Legal Profession provides that lawyers shall treat one another with respect, fairness, consideration and dignity, and shall not allow any ill-feeling between opposing clients to influence their conduct and demeanor towards one another or towards the opposing parties.⁶³ It follows that the legal practitioner must also be courteous to the opposing party and not get emotionally involved in the dispute between the parties.

It is unethical for counsel to criticize his colleague, challenge the procedure that he adopts in handling the matter or question his motive for seeking adjournment. A legal practitioner should not see the matter he handles for his client as a matter of life and death or be overly interested in securing victory in his client's case. In *Ntoe Iso v Eno*⁶⁴, Niki Tobi, JCA (as he then was) observed:

it is the best advocacy for counsel to be completely detached from cases they handle. That is the only way they can find themselves holding tenaciously to the traditions of the profession. In our profession, litigants go in and out of the court but counsels are stable and consistent in the courts. Let no counsel be emotional in any case to the extent that he finds himself in some problem in the real performance of his professional duties.

In *Re Johnson*⁶⁵ it was held to be contempt for a solicitor to abuse and threaten an opposing counsel while on his way along the passages from the judge's chambers

Rule 26 (2) *ibid*.

Rule 26 (1).

(1999) 2 N.W.L.R (Pt. 590) 204.

(1887) 20 QBD 68.

after an application therein. It is also condemnable for legal practitioners to impute criminality to their colleagues. Therefore in *Onuguluchi v. Ndu*⁶⁶, Tobi, JCA (later JSC) cautioned as follows:

It is very much in the interest of the pursuit of justice for counsel to be wary in imputing criminality in the conduct of his learned friend. That is not the best tenet of advocacy. In the instant case, I have not seen the slightest trace of forgery on the part of the chambers of Chief Enechi Onyia or any other person or persons in respect of the endorsement for service or any other Court process or document.

ORDER OF PRECEDENCE

The order of precedence among legal practitioners in specifically dealt with under section 8(4) of the Legal Practitioners Act provides thus:

Legal practitioners appearing before any court, tribunal or a person exercising jurisdiction conferred by law to hear and determine any matter (including an arbitrator) shall take precedence among themselves according to the table of precedence set out in the First Schedule to this Act.

The First schedule referred to in section 8(4) of the Act clearly states the table of precedence as follows:

Table of precedence

The Attorney-General of the Federation.

The Attorneys-General of the States in order of seniority as Senior Advocates of Nigeria and thereafter in order of seniority of enrolment. Senior Advocates of Nigeria in order of seniority.

Persons authorised to practise as legal practitioners by virtue of paragraph (b) of subsection (3) of section 2 of this Act.

Persons whose names are on the roll in order of seniority of enrolment.

Persons authorised to practise by warrant.

Duty to Observe Good Faith

A lawyer shall observe good faith and fairness in dealing with other lawyers.⁶⁷ Elements of this good faith include the following:

(2000) 11 N.W.L.R. (Pt. 679) 519 at 553-554.
Rule 27 (1) of the Rules of Professional Conduct.

The lawyer shall observe strictly all promises or agreements with other opposing lawyers whether oral or in writing and whether in or out of court, and shall adhere in good faith to all agreements implied by the circumstances of the case. *United Mining Co. v Becher*⁶⁸, *Re Hull Country Bank*⁶⁹, *Ex Parte Hales*⁷⁰.

where he gives a personal undertaking and does not expressly or clearly disclaim personal liability there under, honour his undertaking promptly; and

The lawyer shall not take an undue advantage of the predicament or misfortune of the opposing lawyer or client.

Duty to Avoid Sharp Practices

A lawyer shall at all cost, avoid any act or conduct which is calculated to gain an undue advantage against an opposing lawyer in a matter.⁷¹ When Counsel knows the identity of the lawyer representing an opposing party, he should not take advantage of the lawyer by causing any default or dismissal to be entered in a case in which they are appearing without first inquiring about the opposing lawyer's reason for such default.

Lawyers shall treat one another with respect, fairness, consideration and dignity, and shall not allow any ill-feeling between opposing clients to influence their conduct and demeanour towards one another or towards the opposing clients.⁷² In the trial of a cause it is unethical to criticise the approach adopted by or to do anything that would be unfair to counsel on the opposite side. In *Kwaptoe v.Tsenyil*⁷³, a case with a good example of sharp practise, the Court of Appeal per Mangaji, JCA held that:

the practice that has now become the vogue by counsel should stop and it is that learned counsel – especially those representing Appellants or Cross-Appellants as the case may be – form the habit of rushing documents to this court usually one day before the date stipulated for filing the document...It is not a good habit and it is more likely to inspire disrespect to the counsel concerned. To withhold filing the necessary documents, hoping as it seems, that the opposing side

(1910) 2 KB 296.

(1879) 13 Ch. 261.

(1970) 2 KB 539.

Rule 27 (2) (c) of the Rules of Professional Conduct.

Rule 26 (2) of the Rules of Professional Conduct.

(1999) 4 N.W.L.R. (pt 600) 571 at 574.

would have little or no time to respond, to my mind
is unfair and may even amount to dishonesty.⁷⁴

Similarly, in *Pere Roberto (Nig.) Ltd. v. Ani*⁷⁵, the Court held that it is sharp practice for the appellant's counsel to employ "a delay tactic to frustrate the respondent and deprive him of acquiring lawful possession of his premises under the guise of preliminary objection. The Court continued,

...such a callous and unethical action amounts to a sharp practice by the counsel and should be condemned by this court...it is pertinent to chastise the appellant's counsel for his misrepresentation and misleading gesture to this court on the issue. As a minister in the temple of justice and an officer of the court, he has the duty to assist rather than to mislead the court as he did in his brief in the present interlocutory appeal.⁷⁶

Denigration of the members of the legal profession by colleagues is infamous conduct.

9.2 OTHER DUTIES OF THE LAWYER

Duty to uphold the Law

A lawyer has a duty to uphold the law and promote the cause of justice because he occupies a quasi-judicial position.⁷⁷ Lawyers are and ought to be Ministers in the temple of justice. As Justice Yales said in *Mayor of Norwich v. Berry*⁷⁸, "The court must have Ministers; the Attorneys are its Ministers." In the U.S. case of *Re-summers*⁷⁹ the decision by the Bar of Illinois to refuse admission to a conscientious objector to National service, on the ground that he would be unable to subscribe to the oath to support the constitution of the State of Illinois, was upheld by the Supreme Court. In *Okaro v State*⁸⁰, it was held that a Counsel in court in a capital trial has a very important and sacred duty to perform. He owes that duty to, not only his client and the court, but also to society at large. It is of the very essence of that duty that he should promptly take objection to every irregularity at the trial, be that an irregularity relating to procedure or to evidence called at the trial. In *Myers v. Elman*⁸¹, where

See also *Densa Engineering Works Ltd v. U.B.N. Plc* (1991) 1 N.W.L.R. (pt 585) 162 at 171. (2009) 13 N.W..L.R (Pt. 1159) 522 at 534 and 535.

See also *Bawa v. Balarabe* (1999) 6 NWLR (Pt. 605) 61.

Rule 1 RPC 2007.

1767 BURR 2109 at p.2115.

1945 325 US 561.

(1990) 1 N.W.L.R. (pt 125) 128 at 136; see also *Waziri v. State* (1997) 3 N.W.L.R. (PT 496) 689. 1940 AC 282.

a Testator instructed his lawyer to prepare certain conveyance, with intent to evade payment of duty which the solicitor carried out, an order to the solicitor to produce the instructions cannot be resisted as privileged communication.

The lawyer also has the duty not to advise or assist in the violation of law. In *Goodenough v. Spencer*⁸², it was held as follows:

No attorney or counsel has right in discharge of his professional duties to involve his client by his advice in a violation of the laws of the State, and when he does so, he becomes implicated in the client's guilt if, when by following the advice, a crime against the laws of the State is committed. The fact that he acts in the capacity and under the privilege of counsel does not exonerate him from the well-founded legal principles which render all persons who advice and direct the commission of crime guilty of the crime committed by compliance with the advice.

DUTY TO THE PROFESSION

General Duty

It is the general responsibility of a lawyer to uphold and observe the rule of law, promote and foster the course of justice, maintain a high standard of professional conduct, and not engage in any conduct which is unbecoming of a legal practitioner.⁸³

Similarly, a lawyer shall not knowingly do any act or make any omission or engage in any conduct designed to lead to the admission into the legal profession of a person who is unsuitable for admission by reason of his moral character or insufficient qualification or any other reasons.⁸⁴

A lawyer shall not aid a non lawyer in the unauthorised practice of the law or share his legal fees with a non lawyer except as provided in Rule 53. He shall also not write or sign his name on a document prepared by a non-lawyer, for a fee, as though such a document were prepared by him. He shall not permit his professional services to be controlled or exploited by any lay agency which intervenes between him and the client. Charitable societies or institutions rendering aid to the indigent are not deemed as such intermediaries.⁸⁵

1874 46 How. Pr. 347 (Howard's New York Practice Reports) at pp.350-351

Rule 1 of the Rules of Professional Conduct in the Legal Profession.

Rule 2 *ibid.*

Rules 3 and 4 *ibid.*

By Rule 24(3) of the Rules of Professional Conduct, the lawyer must decline to conduct a civil cause or to make a defence when convinced that it is intended merely to harass or injure the opposite party or to work oppression or wrong. Relevant to this provision is the opinion of Lord Esher in *Re Cooke*⁸⁶ that:

If a solicitor were instructed by his client to take certain proceedings which could legally be taken, but which would, to the knowledge of the solicitor, injure his antagonist unnecessarily, but the client nevertheless instructed him to go on in order to gratify his anger, then, if the solicitor knew all this, he would be unfair and wrong if he took those proceedings, although he was acting on instruction in so doing.

Instigating Litigation or Controversy

It is unprofessional conduct for a lawyer to proffer advice to bring a lawsuit, except in rare cases where ties of blood relationship or trust may render it necessary. Fermenting strike or instigating litigation is unprofessional conduct.⁸⁷ Other acts that ought to be avoided by lawyers are:

Searching of land titles for defects with a view to employment in litigation;

Seeking claimants in respect of personal injuries and other causes of action as possible clients;

Engaging agents and others to follow up on accidents, with a view to employment in legal capacity by next-of-kin and others. This is known as ‘ambulance chasing’.

Offering reward to persons likely by reason of their own employment to be able to influence legal work in favour of a particular lawyer;

Such cases are expected to be reported to the Bar council for disciplinary action.⁸⁸

Advertising and Soliciting

In advertising limited advertisement is permitted. A lawyer may engage in any advertising or promotion in connection with his practice of the law subject to the following conditions:

(1889) 5 TLR 407.

Rule 47 *ibid*.

Rule 55(2) *ibid*.

the advertisement must be fair and proper in all the circumstances;
it must comply with the provisions of the Rules;
it must not be inaccurate or likely to mislead;
it must not be likely to diminish public confidence in the legal profession, or the Administration of Justice, or otherwise bring the legal profession into disrepute;
it must not make comparison with or criticise other lawyers or other professions or professionals;
it must not include statement about the quality of the lawyers work, the size of success of his practice or his success rate or;
it must not be frequent or obstructive as to cause annoyance to those to whom it is directed.

Similarly, a Lawyer shall not solicit professional employment either directly or indirectly:

By circulars, handbills, advertisement, through touts or by personal communication or interview.
By furnishing, permitting or inspiring newspaper, radio or television comments in relation to his practice of the law;
By procuring his photograph to be published in connection with matters in which he has been or is engaged, or concerning the manners of their conduct, the magnitude of the interest involved or the importance of the lawyer's position;
By permitting or inspiring sound recordings in relation to his practice of law; or
By such similar self-aggrandisement.

However a lawyer is permitted to publish in a reputable law list or law directory, a brief biographical or informative data of himself including all or any of the following matters:

His name or names of his professional association.
His address, telephone number, telex number, e-mail address etc. The school, colleges or other institutions attended with dates of graduation, degree and other educational or academic qualifications or distinctions;
Date and place of birth and admission to practice law;
Any public or quasi-public office, post of honour, legal authorship etc.
Any legal teaching position;
Any National honours;
Membership and office in the Bar Association and duties thereon; and

- Any position held in legal or scientific societies⁸⁹.

DUTY OF COUNSEL TO COURT

Duty to be Punctual to Court

In Nigeria, the time for court sittings is generally 9:00 am. The exception would be where for some reason the court decides to fix a different time.⁹⁰ Whether or not the Judge sits at exactly the time, counsel should get to court about thirty minutes before the court sits to enable him compose himself and do other things such as rehearsal with his witnesses who should also be advised to attend court early. The Court may strike out or adjourn a case with costs or proceed with hearing without counsel where counsel and/or his witnesses are not punctual. In the case of *Cross Lines Ltd. v. Thompson*⁹¹ the Court of Appeal admonished a lawyer for lack of punctuality and attendance at the Court.

Where counsel for a reason beyond his control cannot be punctual, he should write to court and the opposite counsel or call the registrar/clerk of court or opposing counsel requesting that the case be stood down or adjourned. The court generally grants such requests.

Duty to attend all sittings of court unless he had obtained leave of court to be absent⁹²

The consequence for absence is the same as for lateness.⁹³ However, persistent absence of counsel from court without leave could be treated as interference with the course of justice and held to be contempt of court⁹⁴. Absence of counsel on date of judgment is not necessarily contempt of court, however it is disrespectful for counsel to be absent on date of judgment.

Duty to be properly dressed to court⁹⁵

Counsel should always be attired in a proper and dignified manner and abstain from any apparel or ornament calculated to attract attention to himself. Lord Denning said “Remember also that, whatever the tribunal, you must give a good impression. Your appearance means a lot. Dress neatly, not slovenly. Be well-groomed”⁹⁶

⁸⁹ Rule 39 *ibid*.

When the third Mainland Bridge was undergoing repairs some Courts in Lagos fixed sitting for 10:00 am.

(1993) 2 NWLR (Pt. 273) 74 at 80.

Okonofua v. State (1981) Vol.12 NSCC 233; (1981) 6-7 SC 1 ; *FRN v Abiola* (1997) 2NWLR (pt 488) 444 at 467

Shemfe v. Police 1962 1 ALL NLR 811.

Mckeown v. R (1971) 15 DLR 390.

See rule 36 of the RPC

The Discipline of Law, page 8.

Dress Code

At the Superior Courts (i.e. High Courts, Court of appeal and Supreme Court), he should be robed. Men should wear black or dark-blue two piece or three piece suit, white collarless shirt, white wing collar (size should be bigger than shirt neck size, two studs required to hold collar to shirt) white band, black shoes.

Alternatively,

White shirt with wing collar attached in lieu of collarless shirt detachable wing collar.
Black and grey striped trousers in lieu of suit trousers.
Sleeved vest in lieu of coat

Women should wear black or dark-blue straight dress, skirt and blouse, or skirt and jacket with white blouse if open, white collarete or ladies white band, black shoes. Dress must have long sleeves and must be high to the neck and must at least be knee length.

There have been arguments regarding the conservative dress code of the legal profession. Whatever position a particular lawyer takes, he should concede that this tradition has the advantages of uniformity, distinction and of maintaining the dignity of the profession. Visualise what would happen if the lawyer was allowed to wear jeans and T-shirts to court.

To know the correct mode of addressing the Judge and Professional colleagues⁹⁷

- Magistrate (Male and Female)	Your Worship
- Customary Court Judge (Male)	Your Honour
- High Court Judge (Male)	My Lord/Your Lordship
- High court Judge (Female)	My Lord/ Your Ladyship (my Lord is preferred by some lawyers)
- Court of Appeal and Supreme Court	My Lords
- Legal Practitioner	My Learned Friend

To know and maintain the correct decorum in Court⁹⁸

A Lawyer should rise when addressing or being addressed by the judge.⁹⁹ He should

Henry Cecil, *The English Judge* page 44; Keith Evans, *Advocacy at the Bar*; *Global v. Free Ent.* (2001) 12 W.R.N. 136 at 154; (2000) 5 N.W.L.R. (Pt. 706) 426 at 442.
Rule 36 of the Rules of Professional Conduct. .
Rule 36(c) *ibid.*

never talk when the Judge is talking. While the court is in session, he should not assume an undignified posture. All these lose a lawyer his hearers; and once he has lost them, he is done for. He can never get them back-not so as to get them to listen attentively.¹⁰⁰ He should not also discuss any pending case with any Judge trying same or indulge in the exchange of banter, abuse, argument or controversy with the opposing counsel.¹⁰¹

To maintain a respectful attitude to the Court in Words and Deeds

A lawyer shall always treat the court with respect, dignity and honour. If he has a proper ground for complaint against a judicial officer, he shall make complaint to the appropriate authorities.¹⁰² Rule 35 enjoins lawyers before a judicial tribunal to accord it due respect, courtesy, and dignity. Counsel owes the duty to show respect for the Court and enhance the smooth administration of justice.¹⁰³

It has been held that where a legal practitioner interrupted a court during the course of its judgment with the words: “This is a most unjust remark” he was guilty of contempt¹⁰⁴. Respectful attitude to the court in words includes addressing the judge correctly. It is disrespect not to do so. In *Global v. Free Ent.*¹⁰⁵, Kalgo, JSC lamented

It is common ground that the trial Judge in this case was a lady, and the word, “she” in issue 2 referred to the learned trial Judge. This is a very bad way of showing discourtesy to a lady Judge or infact any Judge at all by referring to him or her in third person pronoun. It is absolutely unethical and unpardonable and whether the Judge is a “he” or “she”, reference should be made to the “learned trial Judge or learned Judge or even Hon. Judge.” I was very disturbed and disappointed to observe that this brief was coming from the chambers of a respectable Senior Advocate of Nigeria. I hope this type of thing will never happen again.

To be fully prepared to go on with the case and not seek unnecessary adjournment

Discipline of Law, page 8. See also Oputa, *Modern Bar Advocacy* pg 220 and *ESSO West Africa Inc. V. Alli* (1968) 1.N.M.L.R.414.

See also Enforcement of Ethics at the Bar and Bench (A Paper Delivered by Chief Wole Olanipekun, SAN at the Bar Bench Forum at the 1996 Biennial Law Week of the NBA, Ilorin Branch on March 26, 1996) Published in the Voice of Law And Social Change *Speeches and Thoughts of Wole Olanipekun, SAN* Volume I 2011,page 501.

Rule 31(2) of the Rules of Professional Conduct.

Fawehinmi v. State (1990) 5. N.W.L.R. pt. 1488,42. *Nwafor Orizu v. Anyaegbunam* (1973) 11 N.S.C.C. 280.

R v Jordan (1888) 36 W.R. 797. *R v Stafford County Court Judge* (1888) 57 L.J. AB 485.

See also *Atake v The AG. Federation & Anor* (1982) 11 SC. 153.

105 (2001) 12 W.R.N. 136 at 154; (2000) 5 N.W.L.R. (Pt. 706) 426 at 442.

thereby wasting the court's time

Where the court is convinced that a counsel is seeking unnecessary adjournment which will amount to wasting of court's time, the court may refuse application for such adjournment and proceed with the case.¹⁰⁶ It is therefore incumbent on the lawyer to be prepared at material times to diligently prosecute or defend his matter.

To conduct his case in logical sequence thereby assisting the court to follow the case with ease

In Civil cases, Plaintiff should give evidence first, then witnesses. Defendant should lead defence witnesses. In criminal cases, complainant shall lead the prosecution witnesses while accused, if giving evidence, would lead defence witnesses. It was this need for logical sequence in presentation of case by counsel that moved Justice Maule to advise as follows:

Mr. Smith, do you think that by introducing a little order into your narrative you might possibly render yourself a trifle more intelligible? It may be my fault that I cannot follow you but I should like to stipulate for some sort of order. There are plenty of them. There is the chronological, the botanical, the metaphysical, the geographical, why, even the alphabetical order would be better than no order at all.¹⁰⁷

To be Candid and Fair

Counsel is regarded as an officer of the court¹⁰⁸, and the court is entitled to rely upon him for assistance in ascertaining the truth, *verital est justitiae mater*. Counsel must make the fullest disclosure of evidence to the Court whether for or against his case and must not knowingly suppress a material fact.¹⁰⁹ He must also not fail to cite a decided case that is against him although he is entitled to distinguish such case. In *Obi v. Ngige*¹¹⁰ where counsel accused the Judge of “committing blunder of the highest order” Augie, JCA (who read the lead judgment) lamented:

I am really saddened at how elective posts that come and go at intervals would make legal practitioners lose sight of the fact that they are nobles and ministers

See the unreported case of Awolowo V. Takuma FCA/L149/82.

See also Oputa, *Modern Bar Advocacy*, page 15 and Orojo, *Conduct and Etiquette in the Legal Profession* page 65.

Rule 30 of the Rules of Professional Conduct.

Rules 30 and 32 of the Rules of Professional Conduct..

(2012) 1 N.W.L.R (Pt. 1280) 1 at 32 and 33.

in the Temple of Justice, which is a more enduring and rewarding heritage. It is as if election matters introduced a virus into the system that has corrupted all known values and traditions that are the mainstay and pride of the profession. There are civilised ways to put arguments across to a court than to use offensive words that are calculated to show disrespect to the court. Impolite remarks serve no useful purpose except to reduce the integrity of the court before litigants, which is not good for the legal profession.

It is a fundamental duty of counsel not to mislead the Court. He must not knowingly mislead the court. He must also not stand by and allow the court to be misled.¹¹¹ It is the duty of every lawyer in the conduct of his case before the court and with other lawyers to show candour and fairness. He should inform the court of subsisting decided authorities on the issue in consideration; but may distinguish the authorities when they are against his client. He should not knowingly misquote the words of an authority or the testimony of a witness. A lawyer should not also promote any case which to his own knowledge is false.

In *Linwodd v. Andrew*,¹¹² Barrister permitted affidavits which contained matter amounting to chicanery to be used. On motion to commit him for contempt of court it was argued that all he had been guilty of was not having thrown up his brief. The Court held that it was his duty to disclose to the Court that the affidavits were untrue and that his fault did not consist in not throwing up his brief, but in having made' himself a party to fraud whose aim was to delude the court.

To avoid Trial Publicity

A lawyer or law firm engaged in or associated with the prosecution or defence of a criminal matter, or associated with a civil action shall not, while litigation is anticipated or pending in the matter, make or participate in making any extra-judicial statement that is calculated to prejudice or interfere with, or is reasonably capable of prejudicing or interfering with, the fair trial of the matter or the judgment or sentence thereon.¹¹³

Relation with Judges

A lawyer shall not do anything, or conduct himself in such a way as to give the

Re: Certain Legal Practitioners (1960) 5 F.S.C. 233. Rule 32 RPC 2007 *Glebe Sugar Refining Co. Ltd V. Greenock Port & Harbour Trustees* (1921) AC. 66.
(1988) 5 8 LT 612.
Rule 33 of the Rules of Professional Conduct.

impression that his act or conduct is calculated to gain or has the appearance of gaining special personal consideration or favour from a judge.¹¹⁴

¹¹⁴ Rule 34 *ibid.*

10.8 ORDER OF PRECEDENCE OF LEGAL PRACTITIONERS IN COURT

The First Schedule to the *Legal Practitioners Act* contains the order of precedence as follows:

Attorney-General of the Federation;

Attorneys-General of the States in order of seniority as SAN and thereafter in order of seniority of enrolment;

Senior Advocates of Nigeria in order of seniority;

Persons authorized to practice as legal practitioners by virtue of paragraph (b) of subsection (3) of section 2 of the Act. Section 2 (3)(b) refers to such offices in the civil service of the Federation or of a State as the Attorney-General of the Federation or of the State, as the case may be, may by order specify;

Persons whose names are on the roll in order of seniority of enrolment; and

Persons authorized to practice by warrant.

Privilege of Law Officers²⁴

All courts of law in Nigeria before which legal practitioners are entitled to appear shall accord to every law officer²⁵ specified the following rights and privileges:

- The exclusive right to sit in the inner bar or, where no facilities exist for an inner bar, on the front row of seats available for legal practitioners.
- The right to mention any motion in which he is appearing or any cause or matter which is on the list for mention and not otherwise listed for hearing out of its turn on the cause lists.

CHAPTER ELEVEN: CONTEMPT OF COURT BY LAWYERS

11.1 MEANING OF CONTEMPT

It is a hazard faced by lawyers in legal practice that there is a potential for them

Section 5(a) Legal Practitioners Act as amended by the Legal Practitioners (Amendment) Act No.2 1979. Attorney-General of the Federation, the Attorney-General of any State in the Federation, and the Solicitor-General of the Federation.

to be cited for contempt of court. Contempt is conduct that defies the authority or dignity of a court or legislature.²⁶ Its ordinary meaning is the attitude or feeling of a person towards another or thing that he considers worthless or despicable. By its legal meaning, it is disregard of or disrespect for the authority of a court of law or legislative body. In *Franklin O. Atake v. Attorney-General of the Federation & Anor*²⁷, Idigbe JSC said on the definition of contempt of court:

It is indeed difficult to give exact definition of contempt of court and this is because it is so manifold in aspects but generally it may be described as any conduct which tend to bring into disrespect, scorn or disrepute the authority and administration of the law or which tends to interfere with and or prejudice litigants and/or their witnesses in the course of litigation.

In *Theophilus Awobokun & Anor. v Toun Adeyemi*²⁸, the Court stressed the essence of contempt of court as action or inaction amounting to an interference with or obstruction or having a tendency to interfere with or obstruct due administration of justice. Similarly, in *Parashuram Detaram Shamdasani v. King Emperor*²⁹, the court said:

The purpose of the discipline enforced by the court in the case of contempt is the need to project the dignity of the court to the person of the Judge and to prevent undue interference with the administration of Justice but not to bolster up the power and dignity of the Judge as an individual. The importance of this is that of all the places where law and order is maintained, it is in the courts the course of justice must not be deflected or interfered with. Those

who strike at it strike at the very foundations of the society. To maintain law and order judges have and must have power at once to deal with those who offend against it.

TYPES OF CONTEMPT

The two types of contempt are criminal and non-Criminal (civil) contempt.

Black's Law Dictionary, Seventh Edition, 904.

(1982) 11 S.C at page 175.

(1968) N.M.I.R. page 289.

(1945) A.C. at page 268.

Criminal contempt consists of words or acts which obstruct or tend to obstruct or interfere with the administration of justice. To call a judge a liar, to allege he is partial³⁰, to say in the course of judgement “That is a most unjust remark”³¹ have been held to be criminal contempt. On the other hand, civil contempt is contempt in procedure consisting of disobedience to the judgements, orders or other process of court and involving a private injury.³²

CONDUCT OR ACTS THAT AMOUNT TO CONTEMPT

It is difficult to exhaustively list the acts which can or cannot constitute contempt of court.³³ It is not every act of discourtesy to the court by counsel that amounts to contempt, nor does conduct which involve a breach by counsel of his duty to his clients necessarily amount to contempt.³⁴ Acts which have been held as amounting to contempt of court include: language or behaviour which is outrageous or scandalous or which is deliberately insulting to the court; comments whether oral or written scandalizing the court in a newspaper or article containing scurrilous personal abuse of a judge, with reference to his conduct as a judge in a judicial proceeding which has terminated.

Allegations of partiality made against the judge which are probably the most common way in which the court has been held to be scandalized, are treated very seriously as contempt because they tend to undermine confidence in the basic function of a judge. An article or publication in a newspaper that scandalizes or is calculated to bring the court into disrepute amounts to contempt.³⁵ Any publication in a newspaper misrepresenting proceedings of a court is contempt under section 133 (4) of the *Criminal Code*.

Every private communication to a judge for the purpose of influencing his decision upon a pending matter and whether or not accompanied by the offer of a bribe or by personal abuse is a contempt of court as tending to interfere with the cause of justice.³⁶ However, a fair and civil criticism made against court, may not amount to contempt.³⁷

Contempt could either be in the face of the court (*in facie curiae*) or outside the court (*ex facie curiae*). Contempt *in facie curiae* has no closed category, and examples

Vidyasagara v The Queen (1963) AC 589.

Stafford County Judge 1888-57 LTQB 483, Jordan 36 WR 289.

See the unreported cases of *Obiekwe Aniweta v. The State* FSA/E/47/78 delivered on 16/8/78. *Awobokun v. Adeyemi* (1968) N.M.L.R. 289 at 294, *Afe Babalola v. Federal Electoral Commission & Chief Adegborioye*: Suit No. AK/MA/77 OF 21/2/78 delivered by T.A. Aguda, CJ Ondo State.

See *Agbachom v. The State* (1970) 1 All N.L.R. Page 69

Izuora v. Queen 13 WACA 313.

R v. Thomas Horatius Jackson 6 NLR & 46-55, *Obiekwe Aniweta v. The State* (Supra).

Awobokun v. Adeyemi (1968) N.M.L.R 289

See *Okoduwa v. State* (1988) 3 S.C.N.J. 110.

in such instance are many. Broadly speaking, it is word spoken or act done within the precincts of the court which obstructs or interferes with due administration of justice or is calculated to do so. Contempt *ex-facie curiae* may be described as words spoken or otherwise published or act done outside court which are intended or likely to interfere with or obstruct the fair administration of justice.³⁸

PROOF OF CONTEMPT

Since a contempt of court is an offence of a criminal character, it must be proved beyond reasonable doubt.³⁹ A civil contempt arising from a breach of an order of injunction must nonetheless be proved beyond all reasonable doubt as in a Criminal proceeding.⁴⁰

PROCEDURE⁴¹

No person shall be punished for contempt of court which is a criminal offence unless the specific offence charged against him be distinctly stated and an opportunity of answering it given to him.⁴² A court can deal summarily with cases of contempt in the face of the court and by the very judicial officer in whose presence the offence was committed. In cases of contempt committed in the face of the court, the court has two options. First, there may be cases where the offence should be dealt with summarily but such hearing must be conducted in accordance with cardinal principle of fair hearing and the case must be one in which the facts surrounding the alleged contempt are so notorious as to be virtually incontestable. Secondly in most cases, the proper procedure of arrest, charge and prosecution must be followed.⁴³

When a contempt is not committed in the face of the court, a judge who has been personally attacked should not as far as possible hear the case.⁴⁴ Fair hearing and natural justice demand that before anyone is committed for contempt he should be informed of the details of the contempt; and also be given an opportunity to answer the allegations⁴⁵

JURISDICTION OF COURT TO PUNISH FOR CONTEMPT

The High Court has inherent jurisdiction to punish criminal contempt summarily

Re: Dr. Olu Onagoruwa: FCA/E/117/79 NO 5/2/80

See *Agbachom v. The State* (1970) 1 ALL N.L.R. 69 *Awobokun v. Adeyemi* 1968) NMLR Page 289.

American Int. Security & Telecommunications Systems (Nig.) Ltd v. Eugene Peterson & Anor. (Unreported) Suit No. FRC/L/1077 of 27/10/78.

Oswald on Contempt committal and Attachment, page 17.

Obiekwe Aniweta v. The State (Supra).

Boyo v. The Attorney-General of Mid-West State (1971) 1 All NLR 342; *Oku v. The State* (1970) 1 All N.L.R. 60. *Maharaj*

A.G. Trinidad & Tobago (1977) 1 All NLR 411.

Awobokun v. Adeyemi (Supra).

See *Re: Olu Onagoruwa* (unreported) FCA/E 117/79 delivered on 5/2/80.

but the power should be exercised with caution.⁴⁶ The inherent power to fine and imprison for contempt is not retained for the personal aggrandisement of the judge. The power is created and maintained for the purpose of preserving the honour of the court.⁴⁷ A charge of contempt of court is a serious one and it is necessary not only for the protection of the courts of justice, but also for the preservation of justice and the administration of it. In this country, acts or conducts which tend to invade these concepts should be very sternly dealt with and in a good time as well.⁴⁸

The Court will pardon a contemnor whose conduct is unintentional and who purges his contempt by a sincere apology and credible explanation. Court will pardon and discharge a contemnor if he acts unintentionally and from a mistaken belief or misconception of the laws thereby flouting a court's order.⁴⁹ A contemnor can be ordered to be kept in prison until he purges his contempt.⁵⁰

Contempt committed under section 133 of the *Criminal Code* carries a maximum imprisonment of three months.⁵¹ The maximum punishment permissible by law in the case of civil contempt is six months.⁵²

Awobokun V Adeyemi (1968) NMLR 289.

Obiekwe Aniweta v. The State (Supra); *Deduwa v. Okorodudu* (1975) 2 SC 37. Section 133 of the Criminal Code. *In Re Boyo* (1970) 1 ALL NLR 116.

The State v. Hon. Justice A.A.M. Ekundayo & Anor KWS/106/77 of 2/9/77.

Ikabala v. Ojosipe, Suit No. LD/967/71 of 30/3/72.

Okoma v Udoh (2002) 1 NWLR (Pt.748) 438.

Afe Babalola v. FEDECO & Anor. AK/ML/77 of 21/2/78 at pages 17-23.

CHAPTER TWELVE: PROFESSIONAL DISCIPLINE OF LEGAL PRACTITIONERS

The four professional offences provided for by *Section 12 of Legal Practitioners Act* as amended for which a Legal Practitioner can be punished by the Legal Practitioners Disciplinary Committee are discussed in this chapter.

INFAMOUS CONDUCT IN A PROFESSIONAL RESPECT

The *Medical & Dental Practitioners Act* contains provision on “infamous conduct”. A definition is also provided in the English case of *Allinson v. General Medical Council*¹ in the following words: “Where a medical man in the pursuit of his profession has done something with regard to it which would be reasonably regarded as disgraceful or dishonourable by his professional brethren of good repute and competency.” The Court said.

At the meeting of the Council on May 28, 1892, the Council considered the following charges which have been made against the plaintiff, Mr. Thomas Richard Allison, by a society called the Medical Defence Union, viz –

That being a registered medical practitioner, and a licentiate of the Royal Colleges of Physicians and Surgeons of Edinburgh, he systematically seeks to attract practice by a system of extensive public advertisements containing his name and address and qualifications, and invitation to person in need of medical aid to consult him professionally, the advertisements so systematically published by him being themselves of a character discreditable to a professional man.

These advertisements contained reflections upon medical men generally and their methods of treating their patients, and advised the public to have nothing to do with them or their drugs. The advertisements contained a series of answers to real or imaginary correspondents as to the proper treatment of different complaints, and there were recommendations to apply to the plaintiff for advice, the amount of fee charged by him for advice being stated.”

It seems to me that it may be fairly said that the plaintiff has endeavoured to defame his brother practitioners, and by the defamation to induce suffering people to avoid going to them for advice, and to come to himself, in order that he may

¹ (1894) L0b 750

obtain the remuneration or fees which otherwise he would not obtain. If on the whole that which he has been doing could be reasonably construed as amounting to that, it comes, in my opinion, within the definition I have read, the Council were justified in saying that the plaintiff has been guilty of
“Infamous conduct in a professional respect”².

In *M.D.P.T. v. Okonkwo*³, the court held that a charge of infamous conduct must be of a serious infraction of acceptable standard of behaviour, or ethics of the profession. In *Onitiri v. Fadipe*⁴, misappropriation of client’s money was held to be infamous conduct by a Legal Practitioner. Breach of any of the Rules of Professional Conduct in the Legal Profession could be held to constitute infamous conduct in a professional respect.⁵ In *Fawehinmi v NBA (No.1)*⁶, Obaseki, JSC outlined the penalties prescribed by the Legal Practitioners Act for infamous conduct in a professional respect committed by any legal practitioner:

- ... (1) He may either have his name struck off the roll of barristers or
- (2) he may be suspended from practice for a period or (3) he may be admonished.

Where a person who has been convicted of an offence which also constituted infamous conduct in a professional respect has that conviction reversed on appeal purely on technical ground, he could still be proceeded against professionally for infamous conduct in a professional respect.⁷

Conviction, by a court of competent jurisdiction in Nigeria having power to award imprisonment, of an offence which is incompatible with the status of a legal practitioner

*Offences that are considered incompatible with the status of a legal practitioner include those involving financial dishonesty*⁸.

This case was cited with approval in *Solicitor Ex parte Law Society* (1912) 1 KB 301 at 311. It was also applied by the Privy Council in the case of *Grahame v. Att-Gen of Fiji* (1936) All ER 992 at 1000.
(2001) 7 N.W.L.R (Pt 711) 206
(Unreported) Charge No LPDC/IP/82 where
Onitiri v. Fadipe (Supra)
(1989) 2 N..W..L.R. (Pt. 105) 494 at 533.
Re King (1845) 8QB 129 15 ER.
Sagoe v R 1963 1 ALL NLR 290 at 293. *R v. Abuah* (1962) 1 ALL NLR 279

In *Re: Abuah*⁹ a legal practitioner was convicted of forgery, false pretences and uttering and it was held that where a legal practitioner is convicted of a criminal offence, prima facie, the conviction makes him unfit to continue to practise as one. The Supreme Court per Ademola CJF observed that¹⁰:

Legal Practitioners are officers of the court. It is our bounding duty to see that officers of the court are men of integrity who should be trusted not only by the court but also by the public for whom they act. We are in this respect carrying out a sacred duty by acting as Judges of their conduct. By enrolling them, we present them to the public as men the public can with confidence employ to carry out the duties and responsibilities appertaining to their all important office. We therefore owe it to the public to see that members of the public are not exposed to risks in their dealings with these men ... And this is not only in respect of cases like the present where the misconduct has been connected with the profession of the legal practitioner but also in cases where the conduct, though not so connected is such as to make it obvious to us that the legal practitioner is no longer a fit and proper person, and not of sufficient respectability to be entrusted with the duties which the honourable profession demands from its members and with which it enjoins them.

In the end, the Supreme Court ordered that the name of Alfred Chukwuemeka Abuah be struck off the roll of legal practitioners in Nigeria and that the decision should be communicated to the Benchers of the Honourable Society in England to which he belonged.

Offences which endanger the welfare of human beings or society, possession, distribution importation or exportation of Indian hemp or Cocaine would come within the provision

Offences against the State including treason, treasonable felony or sedition would not come within the provision. Marriage offences such as bigamy would also not come within the provision.

(Supra).
At 285.

It is not necessarily the seriousness of the offences that is material but whether a person who commits the offence should remain a member of a learned profession. Also the offence need not be committed in a professional respect to come under this provision. Maintaining brothel¹¹ and assisting a prisoner to escape¹² have been held sufficient for a lawyer's name to be struck off the roll. No appeal must be pending against conviction and the time of appeal must have passed for this provision to be invoked.

OBTAINING ENROLMENT BY FRAUD¹³

Where a person obtained enrolment by a misrepresentation of facts and if the true facts had been known he would not have been enrolled, this provision may be invoked. This would cover any of the conditions that must be fulfilled to be called to the Bar since this is a precondition for enrolment.¹⁴ These are possession of a qualifying certificate from the Nigerian Law School, and good character.

It would also cover fraudulent misrepresentation of facts by an alien who succeeded in obtaining enrolment under Regulations made by the Federal Attorney General to practice here. This Provision should also cover cases where a person obtained admission to the Nigerian Law School by fraudulent misrepresentation of academic status such as producing forged law degree Certificate or representing that he possessed a law degree when he did not.

12.3 CONDUCT INCOMPATIBLE WITH THE STATUS OF LEGAL PRACTITIONERS

This is an omnibus ground and covers all residual cases where conduct complained of could bring the profession into dishonour or dispute. Cases like seduction of a client's wife, habitual drunkenness in public, employment of foul language in public, and taking part in street brawl would appear likely to bring the profession into dishonour or disrepute.

12.4 PROCEDURE BEFORE THE LEGAL PRACTITIONERS DISCIPLINARY COMMITTEE

A written complaint against a legal practitioner shall be forwarded by complainant or a person aggrieved to any of the following¹⁵:

Re Weare (1893) 2 QB 290.

Re Valance (1889) 24 LJ 638.

Section 12(1) [c] of the Legal Practitioner Act.

Sections 4(1) and 7(1) of the LPA.

Rule 3(1) LPDC Rules 2006.

The Chief Justice of Nigeria;
 The Attorney General of the Federation;
 President, Court of Appeal or presiding Justice of the Court of Appeal;
 The Chief Judge of the High Court of a State or the Chief Judge of the
 Federal High Court or the Chief Judge of the Federal Capital Territory;
 The Attorney General of a State;
 Chairman, Body of Benchers; and
 President, Nigeria Bar Association or Chairman of a branch of NBA.

A person specified above who receives a complaint shall forward same to the NBA and the NBA shall cause the complaint to be investigated.¹⁶ If after such investigation, the NBA is of the opinion that a prima facie case has been made, the NBA shall forward a report of such case to the Secretary together with all documents considered by the NBA, and a copy of the complaint.¹⁷ The NBA shall appoint a legal practitioner to present the case before the Committee.¹⁸ Every party to the case shall be heard personally or through a counsel of his choice.

On the direction of the Chairman of the Disciplinary Committee, the Secretary shall fix a day for hearing and serve hearing notices to parties (either personal service, registered post or electronic mail).¹⁹ There shall be at least 15 days between the service of hearing notice and the date of hearing²⁰. Except where service is by publication in the newspaper, the Secretary is to serve on parties, other than the complainant, both the hearing notice and copies of the report and the complaint prepared by the NBA.²¹ Upon proof of service, the Committee may proceed to hear and determine the case in absence of counsel.²² An absent party/counsel may however within 30 days from date of pronouncement of findings and direction of the Committee apply for a re-hearing.²³

If the Committee is satisfied that it is just to re-hear the case, it may grant the application upon such terms as to costs or otherwise.²⁴ The Committee shall hear witnesses and receive documentary evidence such as would assist it in coming to its conclusion regarding the truth or otherwise of the allegations.²⁵ The provisions

Rule 3(2) LPDC Rules 2006.

Rule 4 LPDC Rules 2006.

Rule 6 LPDC Rules 2006.

Rule 7(1) and (2) LPDC Rules 2006.

Rule 7 (4) LPC Rules 2006.

See Rule 7(5) LPDC Rules 2006.

Rule 8 *ibid.*

Rule 9(1) *ibid.*.

Rule 9 (2) *ibid.*.

See Rule 10(1). *ibid.*

of the Evidence Act apply to committees proceedings.²⁶ At the conclusion of hearing, the committee may call for written addresses.²⁷

Proceedings and announcement of the committee's decisions shall be held in public.²⁸ If the Committee finds that the allegations have not been proved, it shall record it in its finding.²⁹ If it finds that the allegations are proved, it may give direction:³⁰

ordering Registrar to strike off the Legal Practitioner's name;
suspending the practitioner from practice;
ordering the practitioner to refund money or hand over documents in his possession; or
admonishing the practitioner.

The proceedings before the Committee shall comply with the rules of natural justice.³¹ Directions made by the Committee are to be gazetted.³²

Appeals

Appeals lie from the decision of the Legal Practitioner's Disciplinary Committee to the Supreme Court. See *Legal Practitioners Amendment Decree 1994 Section 10(e)*.

Other Disciplinary Authorities

The Supreme Court³³

Where it appears to the Supreme Court that a person whose name is on the roll has been guilty of infamous conduct in any professional respect with regard to any matter of which the court or any other court of record in Nigeria is or has been seized, the Supreme Court may if it thinks fit, after hearing any representations made and evidence adduced by or on behalf of that persons and such other person as the court considers appropriate, give such directions as is mentioned in subsection (1) of section 11, and the directions shall take effect forthwith; and except in the case of an admonition

See Rule 10(2). *Denloye v. Medical and Dental Practitioners Disciplinary Committee* (1968) 1 ALL NLR 306. See *In Re G Idowu (A legal practitioner)* (1971) 7 NSCC 147.

Rule 15(1) LPDC Rules 2006.

Rule 13 *ibid.*.

Rule 16 *ibid.*

See Rule 17 (a) – (d) *ibid.*

LPDC v Fawehinmi (1985) NWLR (pt. 7) pg 300; (1985) 2 NSCC 998.

Rule 20 LPDC Rules.

Section 12(1) Legal Practitioners Act.

the court shall cause notice to be published in the Gazette.

The Chief Justice of Nigeria³⁴

Where it appears to the Chief Justice that a Legal practitioner should be suspended from practice, either with a view to the institution against him of proceedings under the law before the Disciplinary Committee or while any such proceedings are pending the Chief Justice may if it is thought fit, after affording the practitioner in question an opportunity of making representation in the matter give such a direction as is authorized by paragraph (ii) of subsection 11; and in deciding whether to give such a direction in consequence of the conviction of a legal practitioner the Chief Justice shall be entitled to disregard the provision of subsection (5) of that section.

RESTORATION OF NAME TO THE ROLL

A Legal Practitioner whose name has been struck off the roll or who has been suspended may appeal for his name to be restored to the roll or that suspension be cancelled. An application for this purpose is usually made to the Disciplinary Committee but if the striking off or suspension was ordered by the Chief Justice or the Supreme Court then the application should be made to the Supreme Court.³⁵ In deciding whether a name which is struck off should be restored or that a suspension be cancelled, the following factors are taken into consideration.

The gravity of the offence or offences necessitating the striking off of the applicant's name in the first place.

Whether there is sufficient evidence of genuine remorse shown by the applicant in the period between the striking off of his name and the submission of the application.

Whether in all the circumstances of the case the court is satisfied that the applicant has in the intervening years become a fit and proper person to be reincorporated- as a member of the legal profession³⁶

Section 13(2) Legal Practitioners Act.

Section 14 of the Legal Practitioners Act; *R v. Abuah* (1962) 1 ALL NLR 279.

Re: Abuah (1973) II SC 41 at 43.

ENFORCEMENT OF THE RULES OF PROFESSIONAL CONDUCT

Provisions of the rules or law seeking to instill ethics and professionalism in lawyers and Judges need to be enforced. If they are not enforced, they become meaningless. The machinery for enforcement of the rules that guide the conduct of lawyers and judges include the following:

Breach of the Rules should be condemned

To eradicate unethical and unprofessional conduct among lawyers and judges, members of the profession must criticise every incident involving such misconduct. In *Evoyoma v. Daregba*³⁸ the court held that the practice of counsel addressing during the course of hearing, any private communication concerning the matter before the court to the Judge hearing the action must be firmly and clearly deprecated. Olatawura J, in *The State v The President Ijesha Divisional Grade A Customary Court*; in *Re: Isaac Oluwaleyimu*³⁹ said:

Mr. Adebayo, the learned counsel for the applicant has played a role that called for comment ... I regard him and the applicants as conspirators. I believe they have extorted money from Ojumu family on the pretext that it would be handed over to the President. He has sacrificed principle for personal gains. He is an officer of the court and his first duty is to the court. Contrary to expectation, he has marred the good names of some officers of the court. And officer of court who pollutes

(1968) NMLR 389 at 391
(1974) 2 WSHC 48

the foundation of justice is not fit to be an officer of the court.

Breaches should be reported and prosecuted

Generally, the Legal Practitioners Disciplinary Committee, the National Judicial Council and the court punish infractions adequately. The area of deficiency is the failure of members of the profession and the Bar Association to report cases of breach. Numerous cases therefore go unpunished. Most cases of unprofessional conduct have first been reported by the clients who have been victims.⁴⁰ This is not to ignore the efforts of members of the Bar and the Bench in this regard. The allegation of bribery and judicial corruption involving Opene and Adedoyin, JCA was made by their Learned Brother, Akaahs, JCA (as he then was). It led to the dismissal of the Justices from the Judiciary. For unethical and unprofessional conduct among lawyers to be eliminated or reduced, as many breaches as occur have to be reported and the defaulters punished. In *Re: Hill*⁴¹, Cockburn CJ said: "When an Attorney does that which involves dishonesty, it is for the interest of suitors that the court should interfere and prevent a man guilty of such misconduct from acting as an Attorney of the court." Similarly, Olanipekun⁴² said:

It would appear from the behavioural patterns of a few of our colleagues nowadays that they care less, perhaps out of ignorance, about the ethics of the profession and what fate awaits them when they behave in such manners as to arouse the curiosity of ordinary members of the public to intuitively ask whether the legal profession is just meant for every Dick, Tom and Harry who can pass through the Law School. The time has come for each and every one of us who has a stake in the profession to jealously protect its present and future and promptly report, as enjoined by our Rules of Professional Conduct every overt or covert act of any of our members that would bring shame and dishonor to the learned profession to the appropriate authorities...we cannot, unlike other professions, afford harbouring in our fold any weird personality, human dreg, criminal, delinquent or miscreant. We

One of such cases is *Okike v. LPDC* (2005) 15 NWLR (Pt.)949) 471.

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Enforcement of Ethics at the Bar and Bench (A Paper Delivered by Chief Wole Olanipekun, SAN at the Bar/Bench Forum at the 1996 Biennial Law Week of the NBA, Ilorin Branch on March 26, 1996) Published in the Voice of Law And Social Change *Speeches and Thoughts of Wole Olanipekun, SAN* Volume I 2011,p. 509.

thank God that in this country today, most lawyers live up to their bidding and rating as learned, distinguished, noble and honourable. However, we must curb the excesses of the bad ones immediately and/or promptly, otherwise, the public will keep on judging us by their dishonourable conducts.